

Landis v. North American Co. (1936) 299 U.S. 248, 254.) “Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency.” (*Freiberg v. City of Mission Viejo* (1995) 33 CalApp.4th 1484, 1489.)

Analysis

As outlined above, the UD action underlying this Motion has been completely resolved. Accordingly, there is nothing left to stay. In other words, the current Motion is moot. A case becomes moot when “the question addressed was at one time a live issue in the case,” but has lost its life “because of events occurring after the judicial process was initiated.” (*Younger v. Superior Court* (1978) 21 Cal.3d 102, 120.) “[T]he duty of this court ... is to decide actual controversies ... and not to give opinions upon moot questions or abstract propositions....” (*Consol. etc. Corp. v. United A. etc. Workers* (1946) 27 Cal.2d 859, 863.)

As the underlying UD action has been completely resolved, Plaintiff has already appealed that decision – which was dismissed, and Plaintiff has already been removed from and vacated the Property, there is no longer any case to be stayed. Arguably the motion to stay the UD action ought to have been filed in the UD action. But whether filed there or here, there is no longer any live motion requiring decision.

Conclusion

Plaintiff’s motion to stay the unlawful detainer action, case no. MS25-0977, is **denied as moot**.

11. 9:00 AM CASE NUMBER: C25-03663
CASE NAME: CAILYN USHER VS. SAN RAMON VALLEY UNIFIED SCHOOL DISTRICT
***HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT**
FILED BY: SAN RAMON VALLEY UNIFIED SCHOOL DISTRICT
TENTATIVE RULING:

Defendant school district moves to set aside its default, which apparently resulted from a mix-up of internal communications on the defense side about appointing counsel to represent the district. The motion is unopposed, and it is **granted**. Defendant may file and serve an answer by June 18. This should have been handled by stipulation, as it appears that plaintiff was willing to so stipulate with only minor and conventional added details.

12. 9:00 AM CASE NUMBER: C26-00046
CASE NAME: STEVEN SMITH VS. JESSICA ZAPRUDER
HEARING ON DEMURRER TO: FIRST AMENDED COMPLAINT
FILED BY: ZAPRUDER, JESSICA
TENTATIVE RULING:

Before the Court is the Zapruder defendants’ demurrer to plaintiff Smith’s First Amended Complaint for (1) negligence (against Jessica Zapruder and Michael Zapruder), (2) breach of contract (against Jessica Zapruder and Michael Zapruder), and (3) breach of contract (against Marjorie Zapruder).

For the following reasons, the demurrer is **sustained with leave to amend**.

Brief Factual Background

Defendants Jessica Michaelson Zapruder and Michael Zapruder leased Plaintiff's property at 421 Kahrs Avenue in Pleasant Hill. Plaintiff alleges that the premises were destroyed on July 12, 2024, and seeks to recover losses (in excess of insurance recovery), alleging negligently operated an open-flame grill in a prohibited location. By his complaint, Plaintiff seeks damages for unreimbursed repair costs, lost rental income, investigation costs, public adjuster fees, and other out-of-pocket expenses.

Legal Standard

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Analysis

"What we've got here is failure to communicate." (Strother Martin, Cool Hand Luke.) More specifically, what we have here is an apparent breakdown in what should have been the meet-and-confer concerning the FAC and this demurrer.

The FAC goes on at some length, in generalized legal terms, about prohibitions on open-flame cooking, storage requirements, and so on, without reference to any particular operative facts of this loss. As far as allegations going to the actual *facts* of what did or didn't happen as to this fire, however, the allegations consist entirely of:

1. Defendants "operat[ed] an open-flame grill in prohibited location, creating a fire hazard", at an unspecified time, in an unspecified location, with unstated consequences.
2. "A fire ignited and destroyed the premises...."

That's it. Can you spot what isn't there? What isn't there is:

1. Any allegation that the fire was actually *caused* by an open-flame grill. For all the FAC's allegations say, the fire could have been started by a gas leak, a brush fire, a lightning strike, or a falling meteorite.
2. Any allegation of *when* defendants operated their open-flame grill, or whether the grill in question was operated by someone else on the date in question.
3. Any allegation of *where* defendants operated their open-flame grill.
4. Any allegation of *how* defendants operated their open-flame grill. How, specifically, was it dangerous, and how did it cause a fire that burned down the premises?

One may indulge the assumption that, whether or not any safety ordinances or lease terms were violated, a burning grill does not usually result in setting fire to a building in the absence of some carelessness or negligence. But that is informed guesswork, not allegation. The opposition brief says that is so (though still not specifying what happened exactly). But the FAC doesn't.

The Court does not have access to the substance of the attorneys' meet-and-confer. What should have happened, however, is defense counsel pointing out the absence of cause-and-effect allegations; and plaintiff's counsel saying, "I see your point, I can fix that" -- and then doing so.

In the meantime, however, the absence of allegations as to what caused the fire, and why that is defendants' fault, are fatal to all of these causes of action. Even assuming that the grill operation was in violation of either the lease or the government regulations or both, that still isn't a viable damages cause of action for either negligence or breach of contract, unless that violation actually *caused* the harm alleged. Accordingly, the demurrer is **sustained with leave to amend**.

A separate issue arises as to the potential liability of Marjorie Zapruder as a co-signing guarantor. That issue remains open. But until we have a better pleaded understanding of what the tenant defendants are alleged to have done in breach of the lease and whether that did or didn't result in plaintiff's loss, we cannot come to grips with whether those alleged breaches do or don't fall within the scope of Marjorie's guaranty.

Plaintiff may file and serve a second amended complaint by June 26, 2026.

13. 9:00 AM CASE NUMBER: MSC16-00996
CASE NAME: ELY VS. WALNUT CREEK ASSOCIATES 2 [PAGA]
HEARING ON SUMMARY MOTION JUDGMENT
FILED BY:
TENTATIVE RULING:

Before the Court is a motion for summary judgment or, in the alternative, summary adjudication, filed by defendants Walnut Creek Associates 2, Inc. (DBA Walnut Creek Honda), Gordon S. Walton, Steve Sklavos and David Trzesniewski. The motion is **denied**, as set forth below.

Trial Management Going Forward

If this tentative ruling is contested, the attorneys should also attend (Zoom okay) prepared to discuss the timing and procedure for the upcoming court trial (possibly obviating the need for the pretrial conference now calendared). If there is no hearing on June 4, the attorneys should nevertheless be prepared for same discussion at the pretrial date.

The Court understands that there is at least informal agreement to submit the case to "trial on the papers", a welcome development. Given the concessions and debate found in the briefs on this motion, it may be that the parties are able to agree to much in advance, both legally and factually. Moreover, it may be economical for the parties to ascertain the proper measure and time period for damages – by stipulation, or by briefing and decision – before assembling and submitting bulky evidence books of past-year employment records. (Or, better yet, stipulating to the bottom-line figures ascertained from the employee records.)

The details and scheduling for the trial briefing, however, remain unsettled. In this respect, the Court draws attention to the fact that the nominal trial date, June 22, is in the last week of the service period of the present Temporary Assigned Judge (Judge Treat), and hence it will not be feasible for the Judge sitting on the trial date to carry the trial through to completion. Thus, the case likely calls for an agreed briefing schedule carrying into the time when Judge Campins is back.